

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SEAFair USA LLC, *Complainant*

v.

STERLING CONTAINER LINE LTD. AND ATLANTIC
FORWARDING LTD., *Respondents*.

DOCKET NO. 22-34

Served: June 26, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON MOTION TO COMPEL AND MOTION TO AMEND SCHEDULING ORDER

On June 12, 2023, Complainant filed a motion to compel production of documents (“Motion to Compel”) and a motion to amend the scheduling order (“Motion to Amend the Schedule”). On June 20, 2023, Respondents filed a response to the motion to compel (“Opposition”). Respondents indicated by email that they do not object to the motion to amend the schedule.

Complainant’s motion to compel requests an order compelling responses to interrogatories, requests for production of documents, and requests for admissions. Respondents assert that the motion should be denied as moot as Respondents produced supplemental responses, including 5,600 additional documents. Opposition at 6. Respondents state:

(i) Respondents have already provided detailed responses to each of the 3 Interrogatories identified in the Motion to Compel; (ii) Respondents have now produced all responsive documents identified for the purposes of the 11 Requests for Production described in the Motion to Compel; and (iii) Respondents previously answered each of SeaFair’s 6 Requests for Admission identified in the Motion to Compel, including in their June 8 Response to SeaFair’s Request for Discovery Clarification.

Opposition at 3.

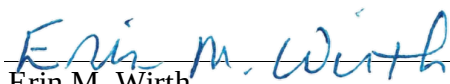
Based on the parties’ representations, the motion to compel is dismissed as moot. Given that the discovery period is now closed, any additional issues regarding discovery may only be raised in the parties’ briefs. No further motions regarding discovery will be permitted.

Complainant also seeks a ten-day extension of time. Complainant states that the parties attended a mediation conference on June 12, 2023, and have tentatively agreed to attend a second mediation. The requested extension will enable the parties to review the discovery provided, attend mediation, and prepare their briefs on the merits. Good cause having been stated, the motion to amend the schedule is reasonable.

For the reasons identified above, it is hereby **ORDERED** that the Complainant's motion to compel be **DENIED** as moot and Complainant's motion to amend the scheduling order be **GRANTED**. The parties shall follow this third amended schedule:

July 7, 2023	Complainant's brief, proposed findings of fact, and appendix.
August 7, 2023	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
August 21, 2023	Complainant's reply brief and responses to proposed findings of fact.

The parties are reminded to carefully review the Initial Order prior to filing their briefs. In addition, the Commission recently switched to Westlaw. Citations to opinions on Lexis should include a parallel citation to Westlaw, if possible. Every citation to a Commission case should include the case name, docket number, citation, level (FMC or ALJ) and exact date of service (month/day/year). Selected FMC cases, including F.M.C. from 1919-1987 and F.M.C.2d from 2018 to present are available at www.fmc.gov/activity-logs.


Erin M. Wirth
Chief Administrative Law Judge